

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR
Plaintiff,

Case No.: 2023-CC-004403

v.

JAMES ALLEN KIRKENDALL, and ANY
UNKNOWN PARTIES IN POSSESSION,
Defendants.

FILED FOR RECORD
2023 AUG 25 PM 3:55
CLERK OF CIRCUIT COURT
MANATEE CO. FLORIDA

**STIPULATION FOR SETTLEMENT AGREEMENT IN LIEU OF JUDGMENT FOR
POSSESSION WITH ACKNOWLEDGMENT OF BREACH OF LEASE WITH PAYMENT
TERMS AND FOR DISMISSAL OF CAUSE OF ACTION UPON SUCCESSFUL
COMPLETION OF PAYMENT TERMS**

COMES NOW the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, by the authorized agent for the Plaintiff and also through its counsel, and the Defendant, JAMES ALLEN KIRKENDALL, in proper person, and hereby stipulate and agree to the following:

1. The Plaintiff brought an action for termination of the lease and eviction of the Defendant from the premises identified as Lot 17, Colonial Mobile Manor, 900 9th Avenue East, Palmetto, Florida 34221 in the above cause based upon failure to pay rent pursuant to Fla. Stat. 723.061.
2. After the Defendant was served with the complaint for eviction, Defendant tendered to the Plaintiff rent by money order in the amount of \$3,167.85 on August 17, 2023.
3. The Plaintiff has agreed to accept this sum as rent through the month of August 2023 and to enter into this Stipulation in Lieu of a Judgment for Possession of Lot 17, Colonial Manor, and to enable the Defendant to continue as a tenant.
4. As a result of the failure of the Defendant to timely pay rent to the Plaintiff resulting in the filing of the eviction complaint, the Plaintiff has incurred the following costs and attorney fees:

Certified mail: \$17.06

Clerk of Court Filing Fees: \$321.20

Attorney fees consisting of: review of client documents, mobile home ownership status, preparation of complaint, preparation of summonses, instructions to process server, motion for default, preparation of default, preparation of Stipulation for

Settlement (this document), transmittal instructions to client (3.1 hours at \$300.00 per hour): \$930.00, for the total sum of \$1,268.28.

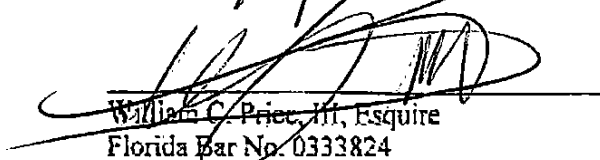
5. Based upon the total owed, and as an inducement for Plaintiff to dismiss the eviction against Defendant, JAMES ALLEN KIRKENDALL, agrees that he is indebted to the Plaintiff in the sum of \$1,268.28, consisting of reasonable costs and attorney fees as defined in Fla. Stat. §723.068.
6. Starting on the 1st of September 2023, JAMES ALLEN KIRKENDALL agrees to pay the rent and utilities due each month, plus the sum of \$1,268.28 to the Plaintiff, payable in equal monthly installments of \$211.38, until the total indebtedness agreed upon by the Defendant has been paid in full.
7. Once this Settlement Agreement has been executed and filed, and the Defendant has paid the sum of \$1,268.28 to the Plaintiff in addition to the monthly rental and utilities, as owed by the Defendant, including any rent increase imposed pursuant to Fla. Stat. §723.037, the Plaintiff will execute a dismissal of the underlying cause of action with prejudice.
8. If any of the above sums are not paid as set out above, including current rent and utilities payments, the Plaintiff shall file and serve upon the Defendant, JAMES ALLEN KIRKENDALL, an Affidavit of Non-Payment, and, if no objection to the Affidavit is filed within five (5) days (not counting Saturdays, Sundays and legal holidays) after the filing and service of said Affidavit, will be entitled to the entry of a Judgment of Possession and the issuance of a Writ of Possession as provided in Florida Statute Section 723.062, and a judgment for all unpaid sums and all costs and attorney fees incurred by Plaintiff in the processing of this action. Service of the Affidavit shall be in the same manner as is required for notice to a mobile homeowner under Section 723.061, Florida Statutes.
9. If the Defendant, JAMES ALLEN KIRKENDALL of Lot 17 of Colonial Mobile Manor, defaults in any of the above payments, and Defendant abandons possession of the dwelling or is lawfully evicted by reason of such default, it is agreed that Plaintiff shall be entitled to a money judgment for any such payments as are in default at the time of Defendant's abandonment or eviction and for all such other relief as provided by Florida law. Defendant waives notice and hearing on Plaintiff's application for such money judgment.
10. The laws of the State of Florida shall govern this Agreement. The venue for this cause of action is Manatee County, Florida. Each party has executed this agreement after having discussed same with their respective counsel and no one has forced or threatened the parties to execute this Agreement. This Agreement may be executed in counterparts and is subject to the Florida Uniform Electronic Transactions Act. The parties anticipate that this Agreement will be filed with the Clerk of Court in Manatee County, in the above styled case docket.

Executed by the parties on the dates identified with each signature.

Dated: Aug 24, 2023


JAMES ALLEN KIRKENDALL
Defendant

Dated: 8/24/2023, 2023


William C. Price, III, Esquire
Florida Bar No. 0333824
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Bradenton, Florida 34205
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Facsimile: (941) 747-3730
pleadings@wcpriicelaw.com
Attorney for Plaintiff, Colonial Manor MHC
Holdings, LLC d/b/a Colonial Mobile Manor

Dated: Aug 24, 2023

Approved by:


Colonial Manor MHC Holdings, LLC
By Cheryl Peake, as Manager

ORDER ON STIPULATION

THIS MATTER having come on to be heard upon the Stipulation of the parties and the Court having considered the same and being otherwise fully advised in the premises, it is hereby. **ORDERED AND ADJUDGED:**

That the Stipulation of the parties is hereby approved as set forth therein.

DONE AND ORDERED in Chambers at Bradenton, Manatee County, Florida, this 25th day of August, 2023.


JACQUELINE BLANTON STEELE
COUNTY JUDGE

cc. William C. Price, III, Esq. Attorney for Plaintiff; 522 12th Street West, Bradenton, FL 34205
James Allen Kirkendall, Defendant; 900 9th Ave East, Lot #17, Palmetto, FL 34221